



Introduction to the Legal System II

Parliamentary Executive

Outline:

1. Introduction – Classification
2. Applying Dispositional Properties
3. Key Features of the System
4. Historical Evolution
5. The Institutions of Parliamentarism



Why Classifying Forms of Government?

Classifying means to put order by assigning different names to different forms of government.

This allows to focus on the advantages and disadvantages of specific **institutional configurations**.

- E.G. Debates about the ***virtues of parliamentarism*** and the ***perils of presidentialism***.
- E.G. Studies on “**Constitutional Design**” try to determine what is the optimal form of government, given certain socio-political circumstances
- These debates often seek to find the balance between ***government effectiveness, political representativeness, and respect for the Rule of Law.***

Method of Classification

- We use the approach of Political Scientist **Robert Elgie**
- He distinguishes between **Dispositional** and **Relational Properties**

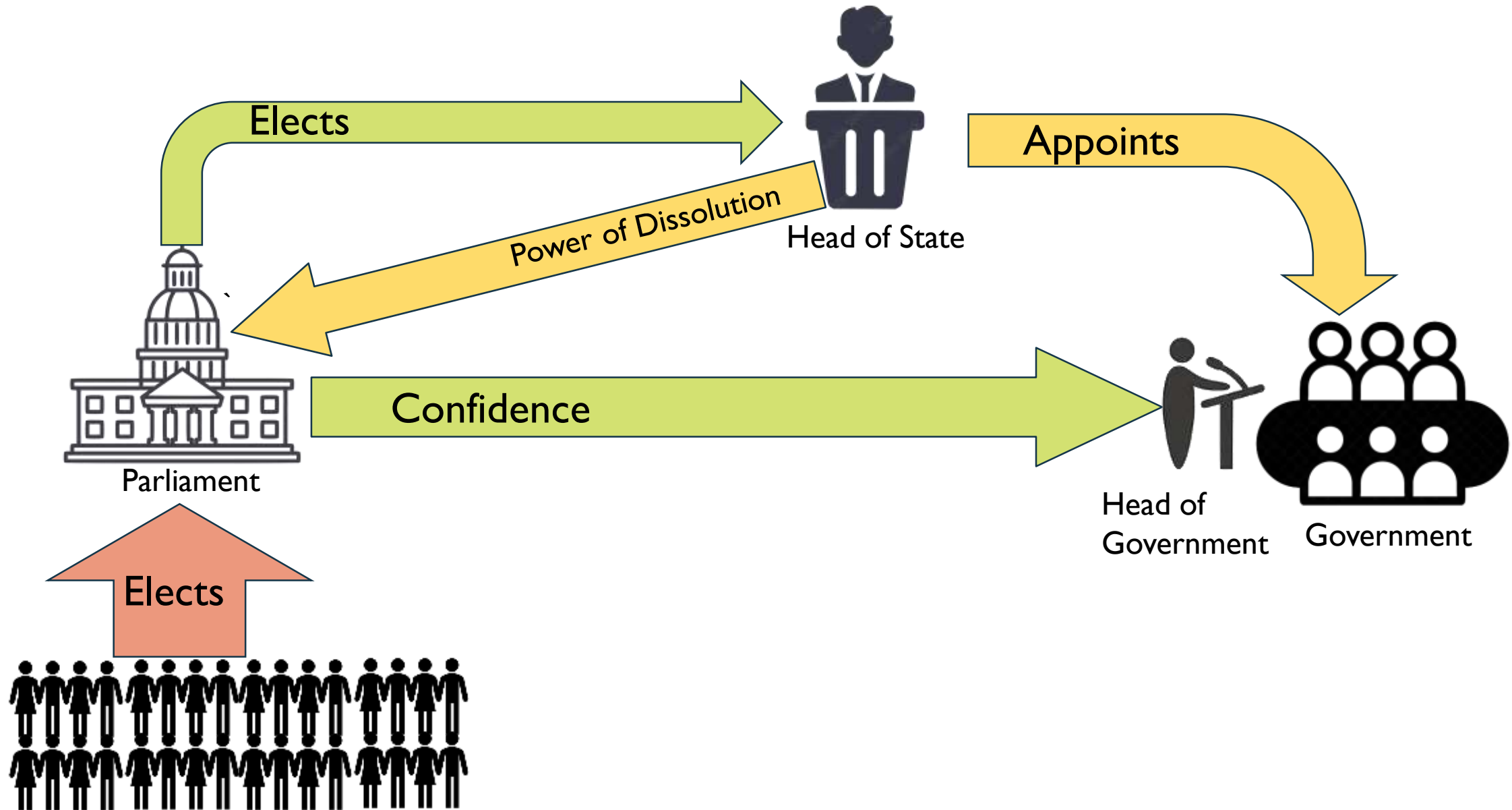
Dispositional Properties

- The **formal rules** that divide (organize) power between various constitutional bodies:
- We find them in the written Constitution or in Constitutional Conventions/Constitutional Practice
- Related to the government's own **disposition** – its morphology or internal organization
- **External** factors (politics, electoral system) or **political circumstances** do not influence this classification

Relational Properties

- They concern the **actual exercise of power**
- Beyond formal rules
- We find them by observing the political system and the practice of government
- **Elgie** does not think relational properties are a good basis for classification and he prefers to resort to dispositional properties.

I. The Parliamentary Executive (Republic)



First Dispositional Property

Do we have both a Head of State and a Head of Government?

Yes!

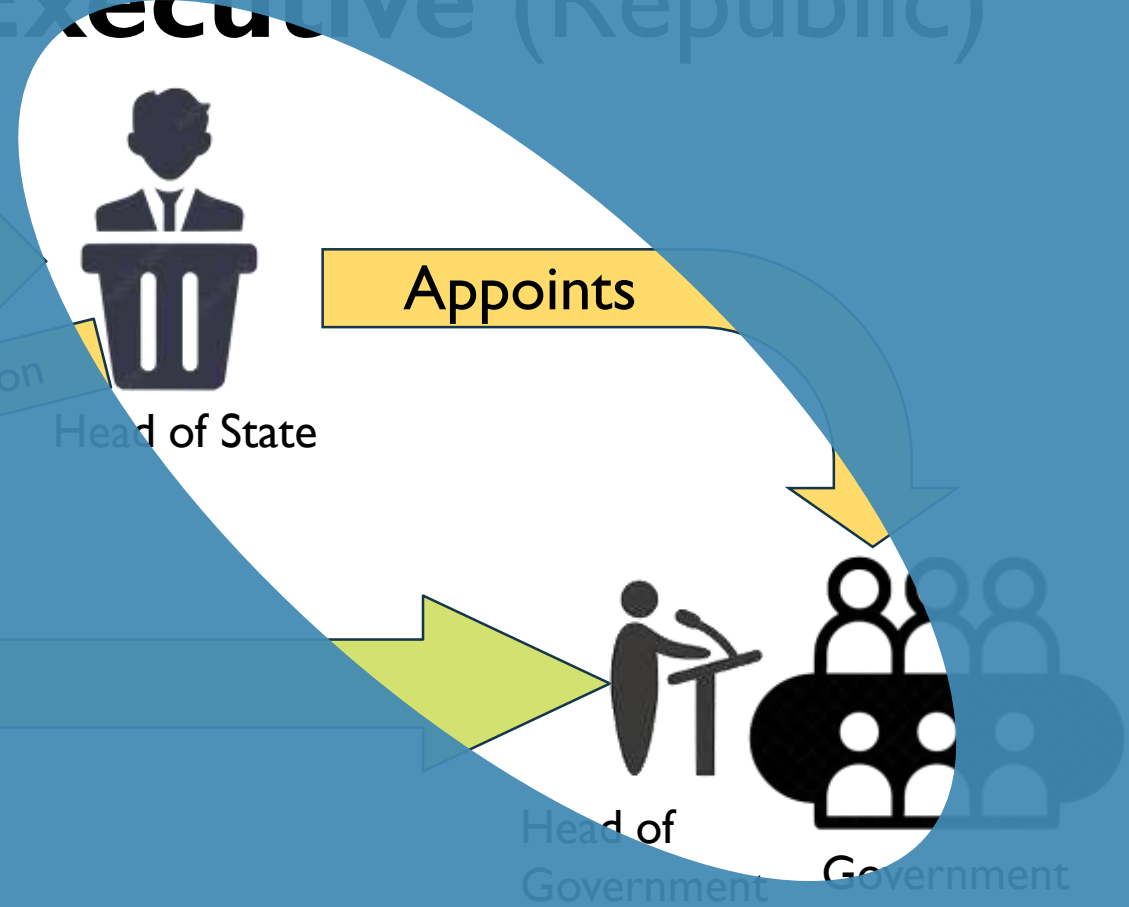
For Example:



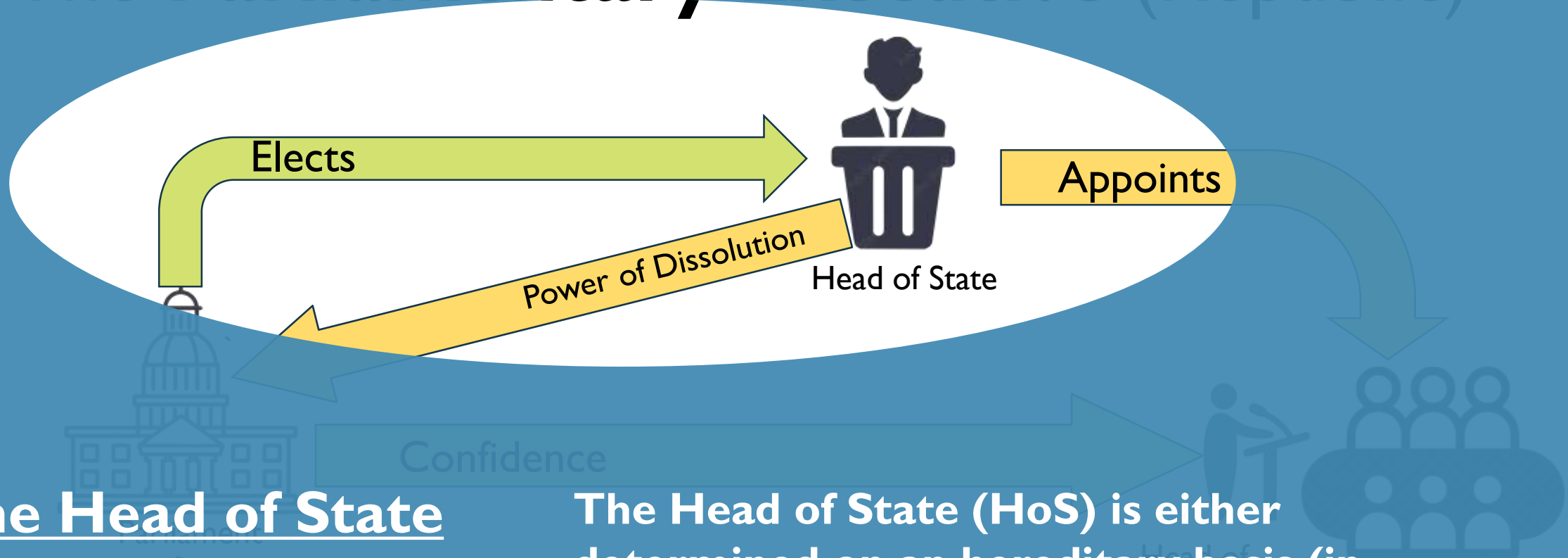
Italy



UK



Second Dispositional Property



Are the Head of State
and the Head of
Government Popularly
Elected?

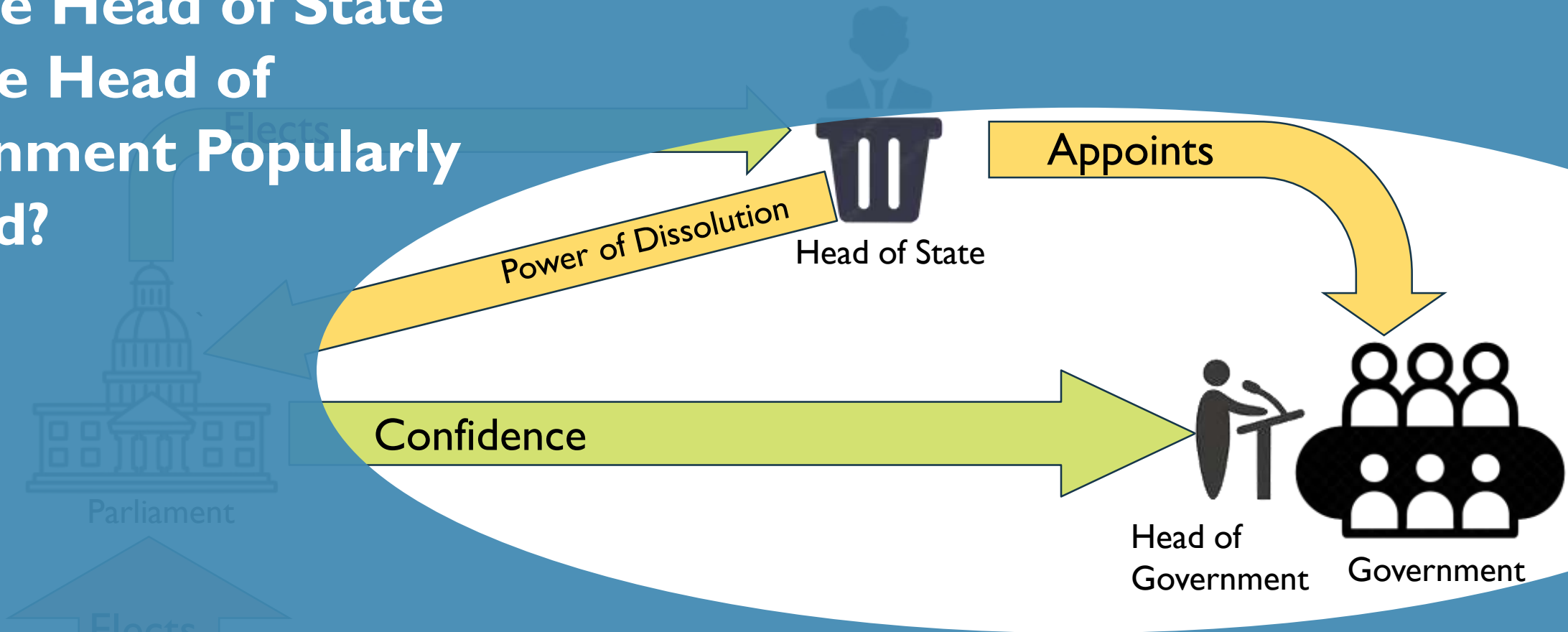
No!

The Head of State (HoS) is either determined on an hereditary basis (in monarchies) or elected by Parliament (in republics)

Second Dispositional Property

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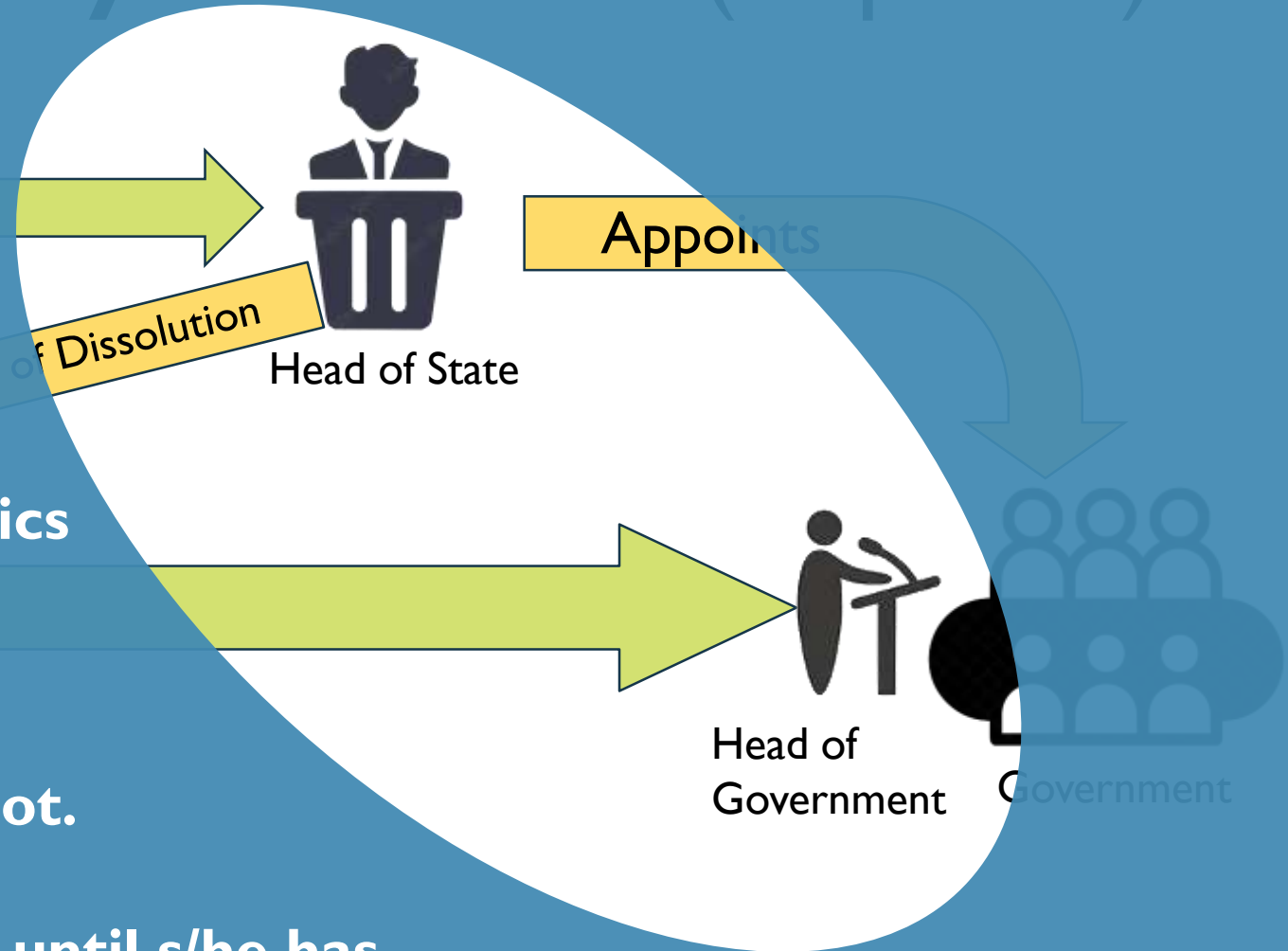
The Head of Government (HoG) is appointed
by the Head of State and needs to have the
support of the Parliament (confidence).

Third Dispositional Property

Do the Head of State and the Head of Government Serve for a fixed term?

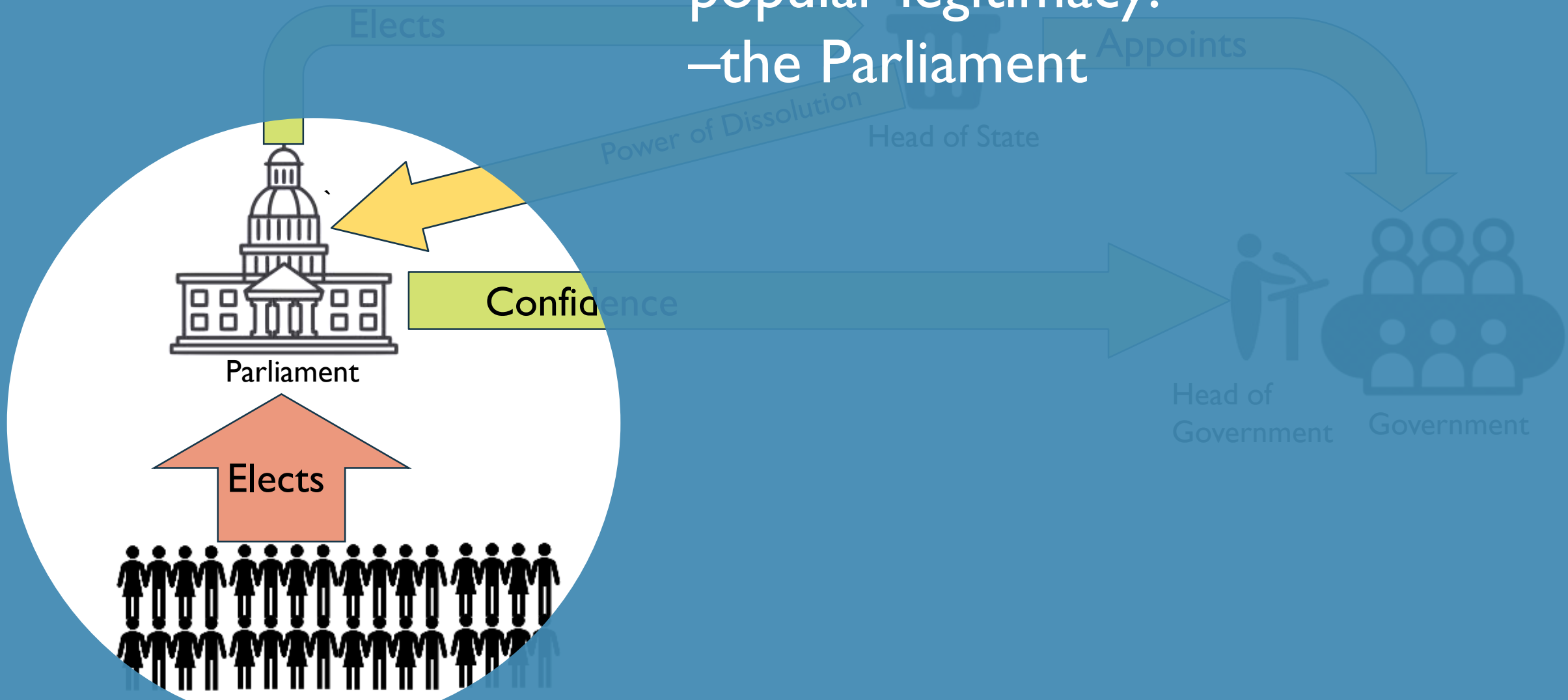
The Head of State serves for life in Parliamentary Monarchies or for a fixed term in Parliamentary Republics (e.g. Italy, 7 years).

- The Head of Government does not.
- The Head of Government serves until s/he has the support of the Parliament – hence his/her term is not fixed.



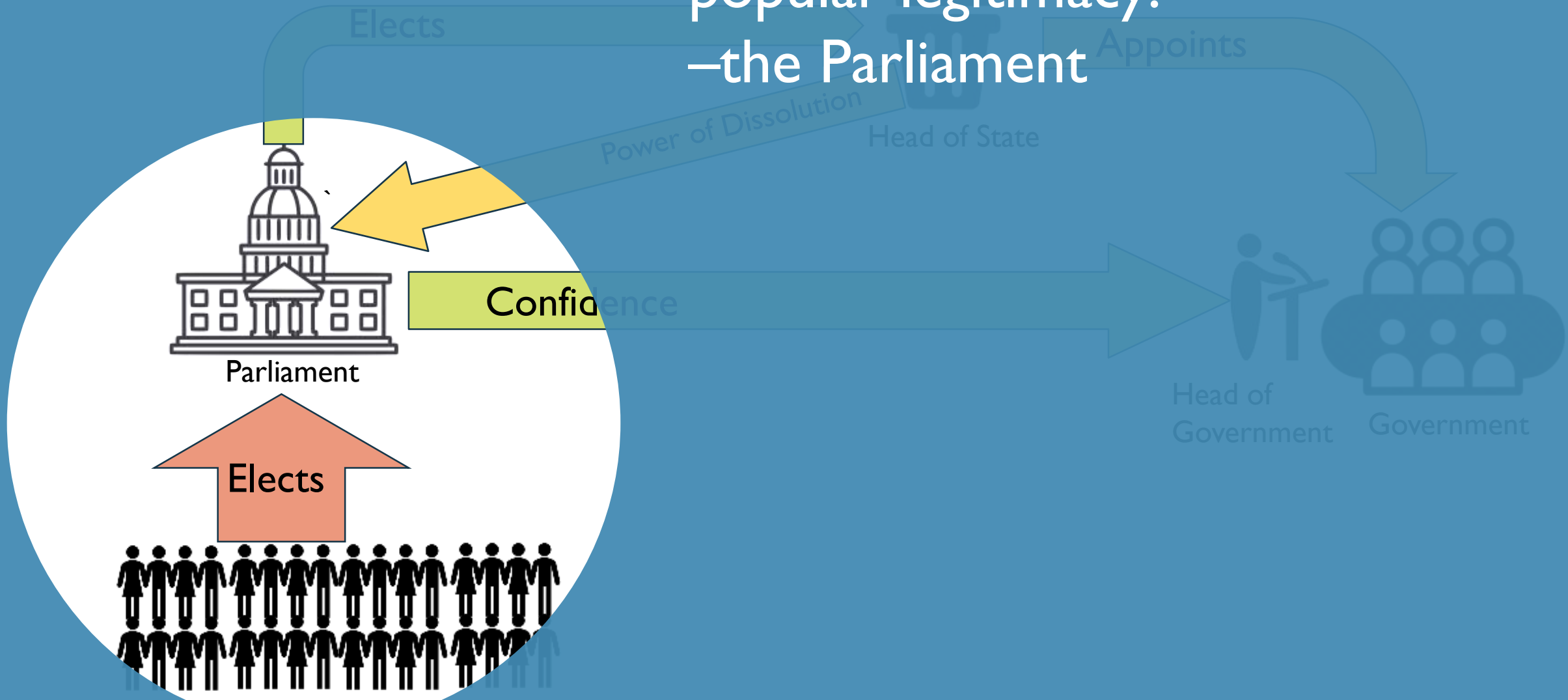
I. The Parliamentary Executive (Republic)

Only one institution has direct popular legitimacy:
–the Parliament



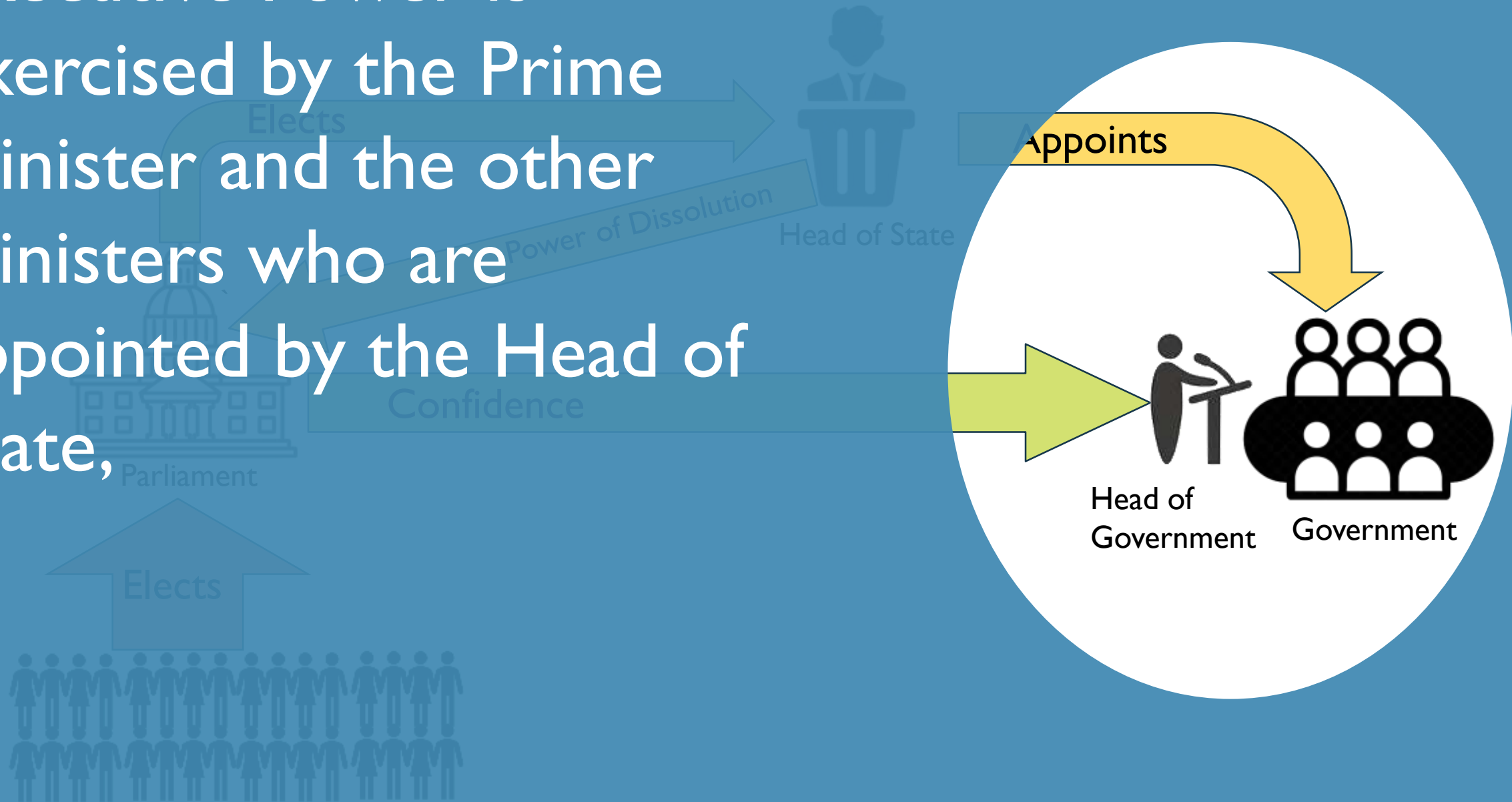
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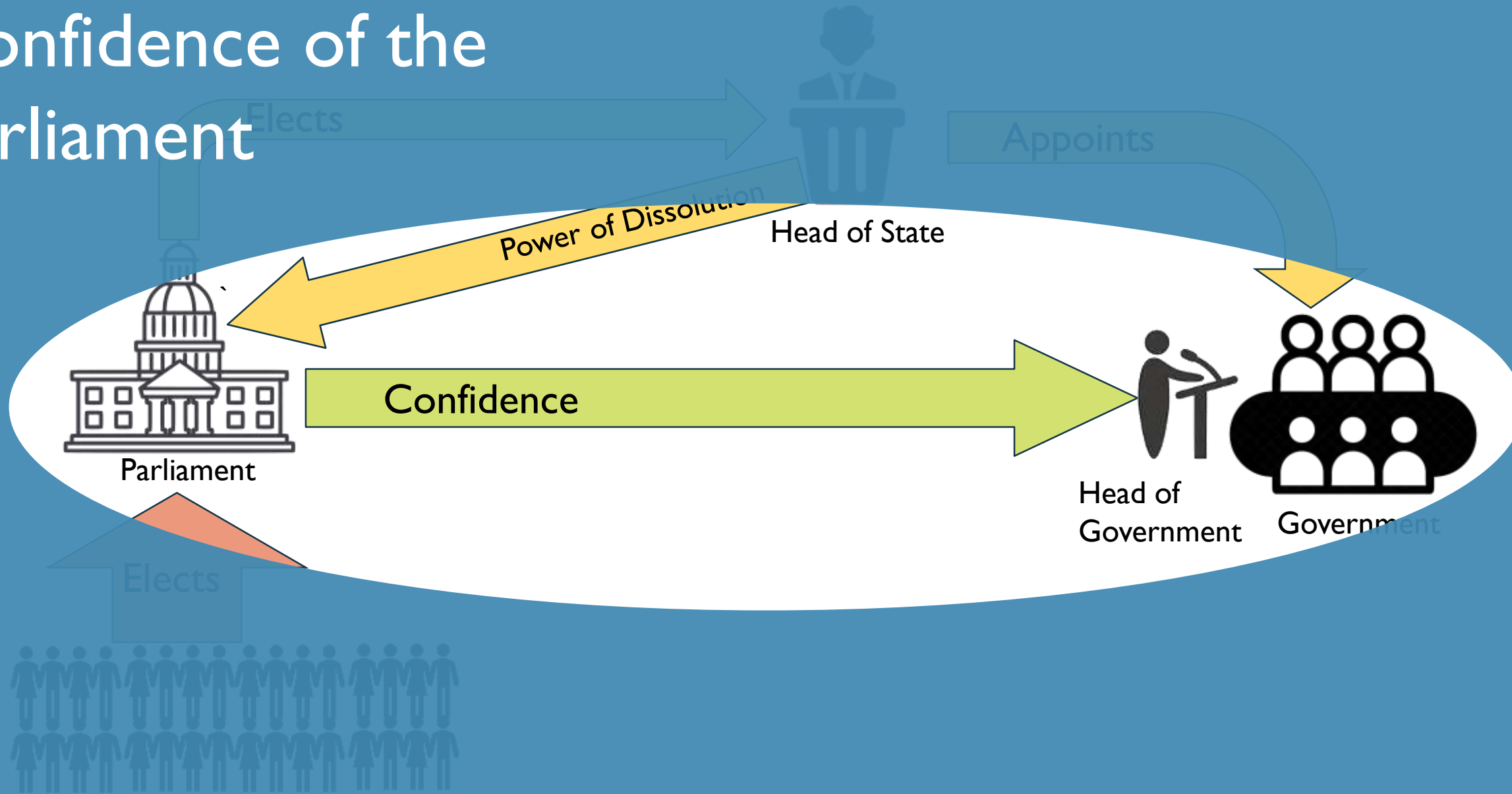


The Parliamentary Executive (Republic)

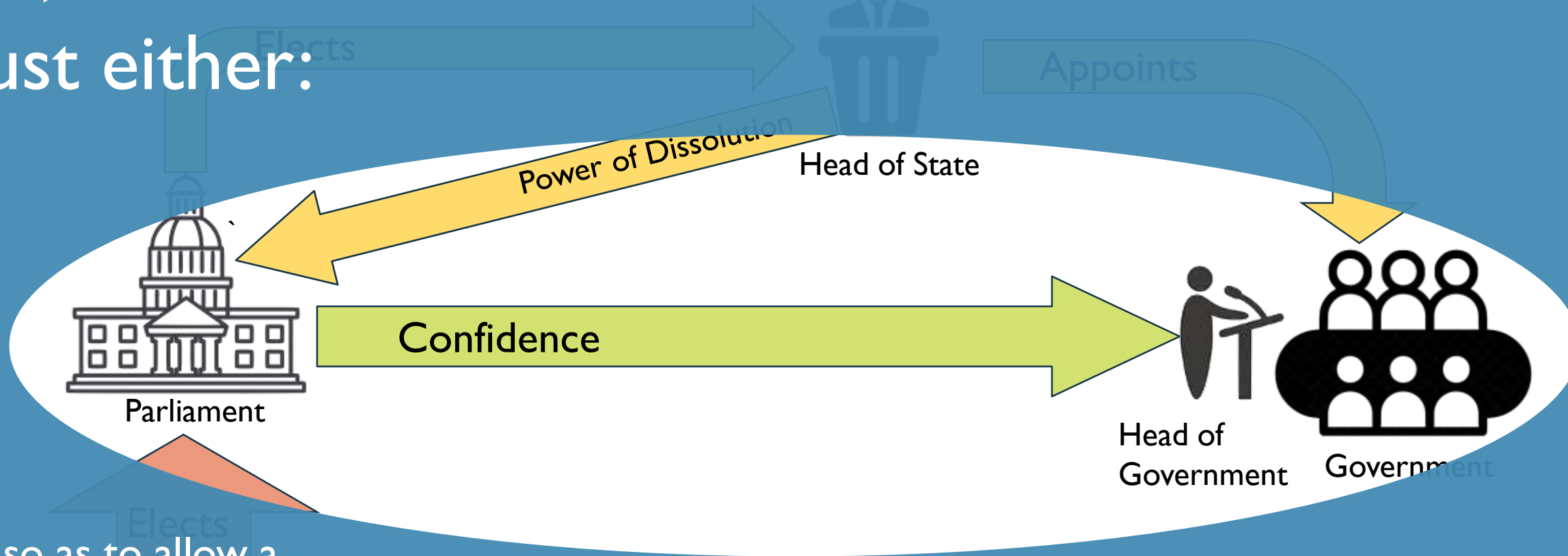
Executive Power is exercised by the Prime Minister and the other ministers who are appointed by the Head of State,



But need to have the Confidence of the Parliament



When that confidence is lost, the Prime Minister must either:



Resign so as to allow a new majority to be formed within the standing parliament

Or

Ask the Head of State to Dissolve the Parliament and call for new elections – **Power of Dissolution**

Parliamentary Executive – Historical Evolution



- Origins – **Great Britain**
- Gradual evolution of the relationship between the Office of the **Prime Minister (and the Cabinet)** and the **Monarch**
 - Through **political expediency** and **constitutional practice**, rather than written law
- “It is a distinguishing characteristic of Parliamentary Government that it requires the **powers belonging to the Crown to be exercised through** Ministers who are **responsible** for the manner in which they are used ... and who are considered entitled to hold their office only when they possess **the confidence** of the Parliament and more especially the House of Commons.” (Earl Grey, 1958)

Continental Europe

- Developed through written constitutional provisions
- In France – parliamentarism was associated with democracy – as a principle of legitimacy rather than as a form of government (reaction against absolutism)
- Attack on parliamentarism – Carl Schmitt – parliamentarism is connected with the 19th century's liberalism rather than democracy, *'The Crisis of Parliamentary Democracy'*

Relationship Parliament/Executive

- **Relationship of Confidence**

- Each new government needs to have confidence of the parliament

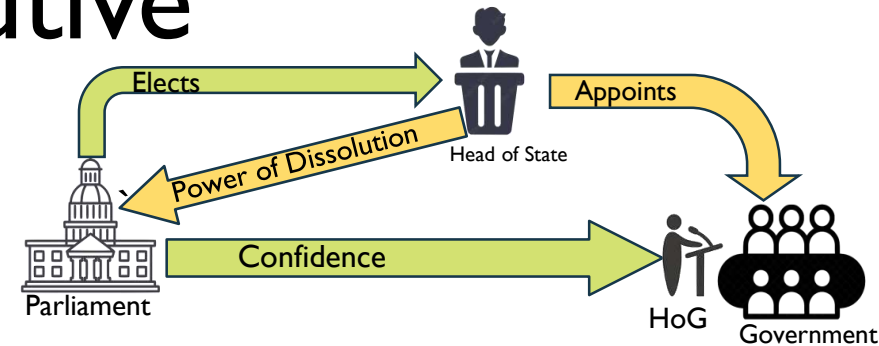
- Sometimes explicit – e.g. Italy – **Vote of Confidence**
- Sometimes implicit – e.g. UK

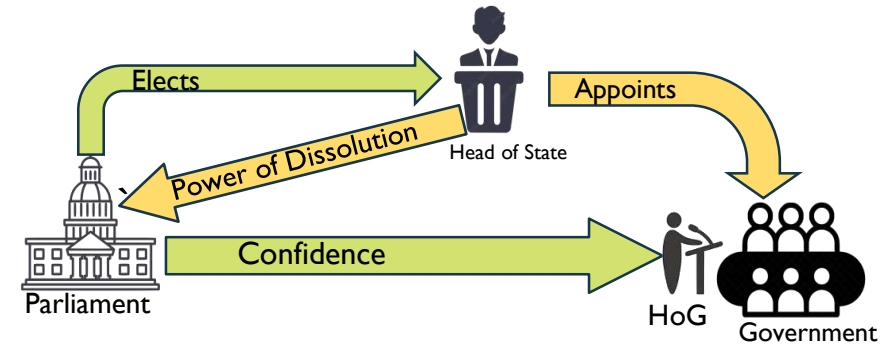
- **Motion of No-Confidence**

- Formal procedure through which the parliament withdraws confidence
 - E.g. Italy: presented by 1/10th of the MPs in one of the chambers; passed with simple majority

- **Motion of Confidence**

- Often asked over a single bill to prevent dissident members in the majority to vote against it





- If a motion of **No-Confidence** is passed, or a Motion of **Confidence** is rejected, the **Government MUST resign**.
- This normally results in the appointment of a **new prime minister** with an alternative majority or, if this cannot be found in a **dissolution of the parliament**.

The **Constructive Vote of No Confidence**

- Art 67 German Basic Laws: “The Bundestag can express its **lack of confidence** in the Federal Chancellor only by **electing a successor** by the majority of its members and by requesting the Federal President to dismiss the federal Chancellor. The Federal President must comply with the request and appoint the person elected.”
- Used only twice (1972 ad 1982) but worked as a **strong deterrent** against government crises.
- Similar procedure available in **Spain**

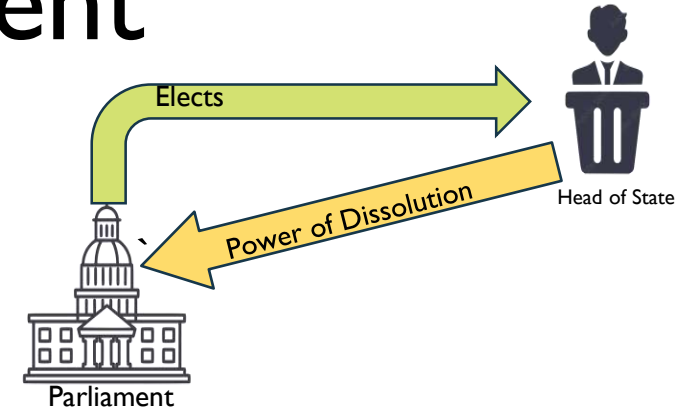


Helmut Shmidt 1982

Willy Brandt 1972

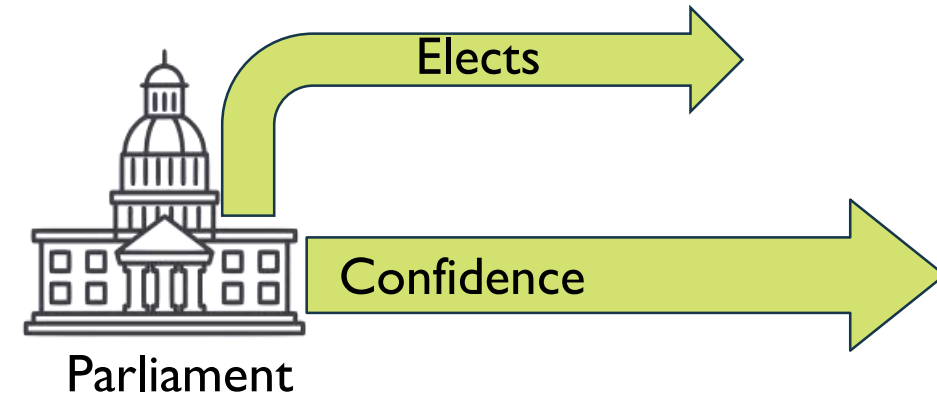


Power of Dissolution of the Parliament



- Formally exercised by the **Head of State**
- But this **is never a discretionary power** of the Head of State
- Severely restricted by Constitutional Conventions
 - E.G. In the UK, the power is *de facto* exercised by the Prime Minister who can ask the HoS to dissolve the parliament also to get a more secure majority in Parliament.

Functions of the Parliament



1. Making and Unmaking Governments
2. Legislative Function
3. Control and Oversight Function

Parliament: bicameralism

Origins of bicameralism – English experience – polarisation between the aristocracy and democratic principles – House of Lords and House of Commons

Necessary characteristic of federal systems (one Chamber- federal unity, another – single states comprising the federation)

Advantages:

- Prevention of possible abuses of a single Chamber
- Better representation
- Better thought-out decisions





Status of MP



Special guarantees:

- Instruments aimed at protecting the proper operation of a Parliament
 - 1) Prohibition against imperative mandates (avoiding an excessively close bond between MPs and their electoral districts) (art.67 of It.Const)
 - 2) Parliamentary immunity (prior authorisation of the Chamber to wiretap, MPs shall not be called to answer for opinions expressed or votes cast in the exercise of their function)
 - 3) Allowance

Government

- Monocratic leadership – President of the Council
 - Power to represent the entire Government
 - Power to promote and coordinate the activities of the Government
- Principle of collegiality: general policy is only promoted by the President of the Council, being decided by the Council of Ministers
- Principle of personal responsibility of Ministers



Government

- Sets the legislative policy agenda
- Develops and introduces new legislation in order to pursue policy objectives
- Is responsible for directing the administration and setting executive policy



President of the Republic (e.g. Italy) – Functions

- Formally Presidential (substantively governmental) functions
 - E.G. Issuing Laws
- Substantively Presidential Functions
 - Appointment of 5 constitutional judges and senators
 - Pardons
 - Power not to promulgate a law and send it back to the chamber
- Complex Acts
 - Appointment of the Prime Minister
 - Early Dissolution of the Chambers

